

GHENT
UNIVERSITY

DEPARTMENT OF RESEARCH AFFAIRS
BOEKENTOREN

AMAI/OEI/OH! THAT'S PERSONAL!

Practical guide on dealing with Personal Data
March 26th, 2024

GHENT UNIVERSITY

BK | GHENT UNIVERSITY

OUTLINE

- Beyond the GDPR theory. Focus on practical solutions to ensure GDPR compliance while conducting research.
- How to include privacy by design in your research
- How to assess risk and impact
- Which technical and organizational measures can you apply to protect the privacy of the data subjects

GHENT UNIVERSITY

OUTLINE

- Basic concept and terminology
- Roles, rights, legal grounds
- Risk assessment
- Technical and organisational measures (TOM)
  - Preventing disclosure
  - Impact reduction
    - Pseudonymisation
- Sharing/reusing personal data
- Actions to take

GHENT UNIVERSITY

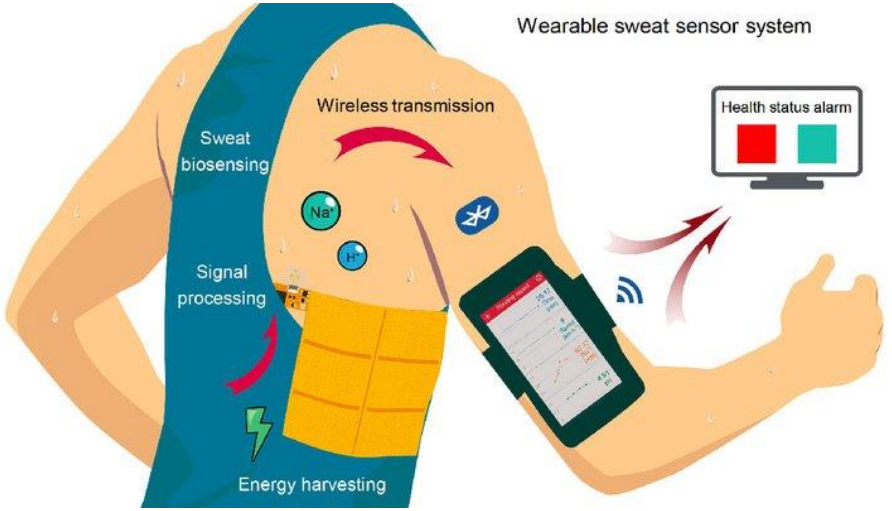
BASIC CONCEPTS + TERMINOLOGY

GHENT UNIVERSITY

WHAT ARE PERSONAL DATA?

Any information about natural living persons





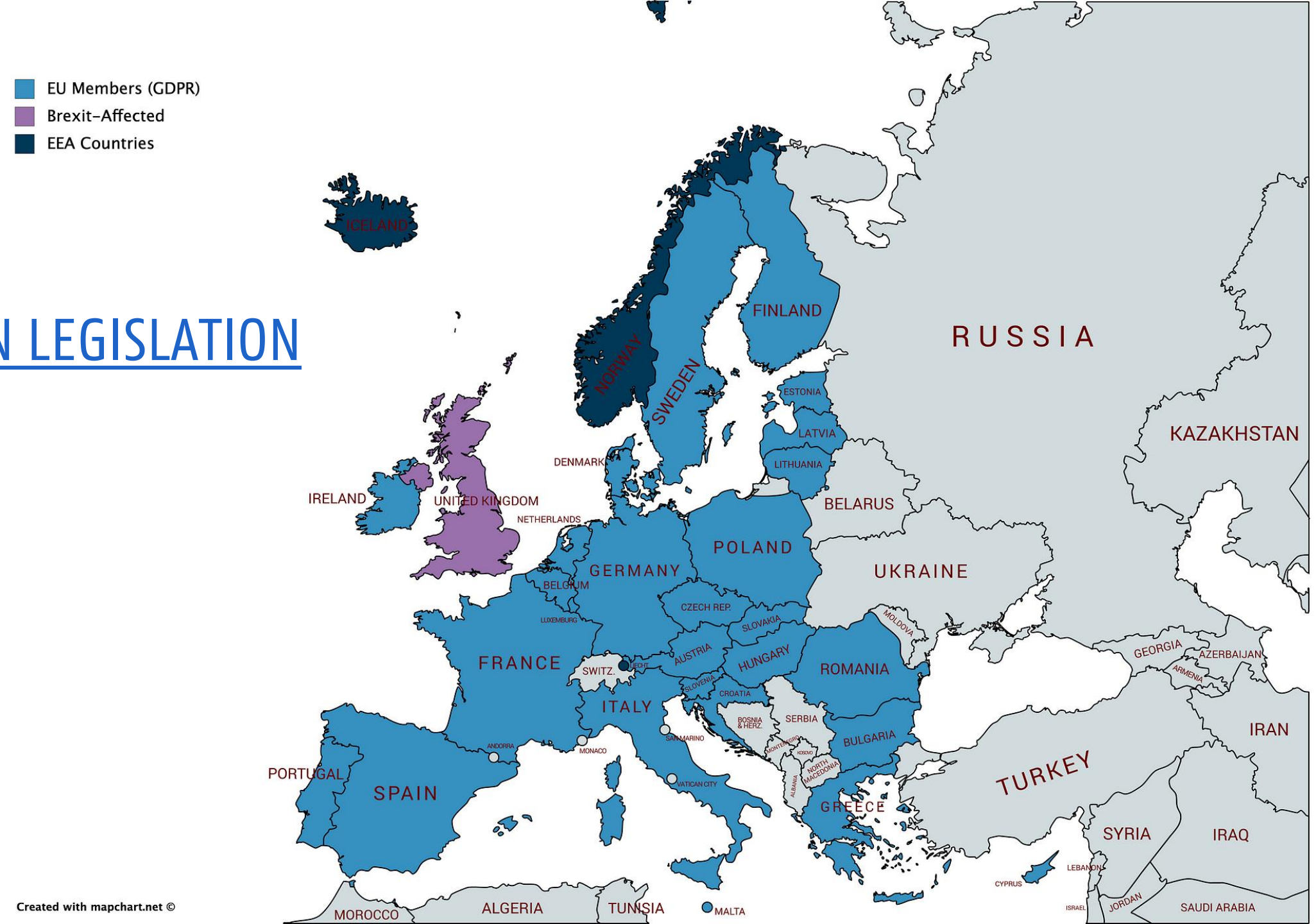






GHENT UNIVERSITY

EUROPEAN LEGISLATION



GHENT UNIVERSITY

Created with mapchart.net ©

SIX BASIC PRINCIPLES

Accuracy

Are the personal data still correct?

Purpose limitation

Do you use personal data only for specified and legitimate purposes in your research?

Data minimization

Do you only collect personal data that are necessary to achieve the specified goal of your research?

Lawfulness, fairness and transparency

Are the data subjects informed and is the data processing undertaken accordingly?

Storage limitation

Do you really need the data after a certain period?

Integrity and confidentiality

Do you process personal data in a manner that ensures appropriate security?

GHENT UNIVERSITY

WHAT ARE PERSONAL DATA?

Data subject

- The individual whose data is being collected
- Natural Living Person

Personal data

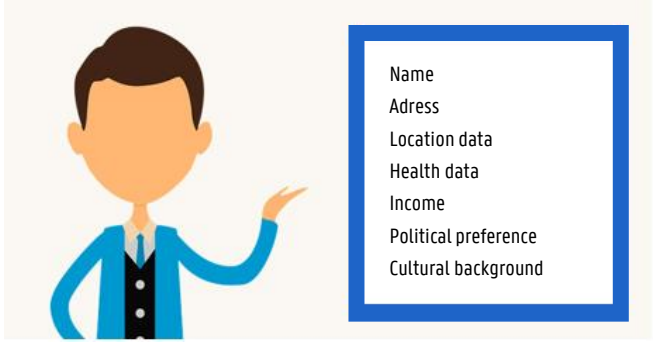
- Any information which can identify a natural person whether directly or indirectly

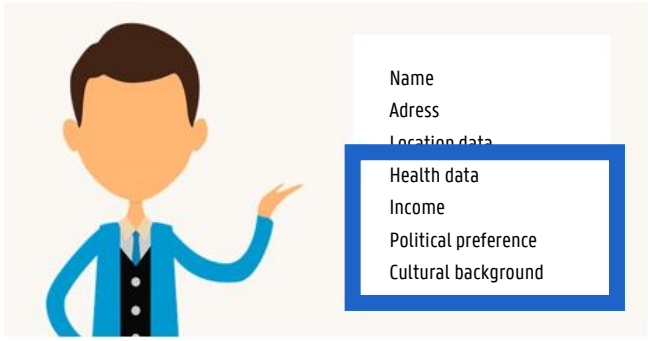
Special categories of personal data (sensitive data)

- Racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic data, biometric data, health data, data on sex life or sexual orientation

Vulnerable persons

- Minors, pregnant women, the elderly, people with mental disorders, asylum seekers, people with disabilities, ethnic minorities, the sick and patients.
- More: https://onderzoektips.ugent.be/en/tips/00001781/





GHENT UNIVERSITY

https://onderzoektips.ugent.be/en/tips/00001781/

DIRECT- INDIRECT IDENTIFIERS

- Name
- Address
- Place of birth
- Political views
- Household composition
- Date of birth
- BMI
- SS-number
- IP address
- Photo of individual
- Voice of individual
- Pets
- Annual income
- Favourite color
- GPS location
- Sexual Behiavour
- Profession
- Hobbies
- Heart rate monitoring data (sportswatch)
- DNA sequence
- Email address
- Behavior (e.g. bakery)
- Twitter-ID

GHENT UNIVERSITY

PSEUDONYMOUS AND ANONYMOUS DATASETS

Pseudonymised data

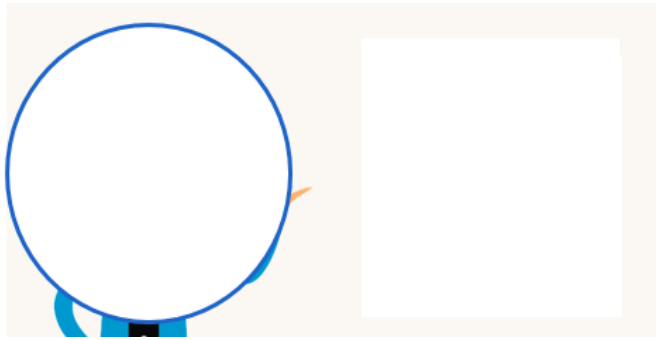
⟶Personal data (sensitive or not) that can only be **associated** with an identified or identifiable person by means of a **non-public (secret) key or additional data (lack of key)**

⟶Data subject is are **only identifiable** with the use of **additional information/identifiers** that is kept separately

⟶Pseudonymised data are still **personal data** (even if the identifiers are held by another organisation)

⟶Pseudonymised data **= GDPR!**





Anonymous data

⟶Do not relate to an **identified or identifiable** natural person

⟶Data subject is **not or no longer identifiable** (no person in any way)

⟶Anonymised data **≠ GDPR**

⟶The handling (**anonymisation**) **= GDPR!**

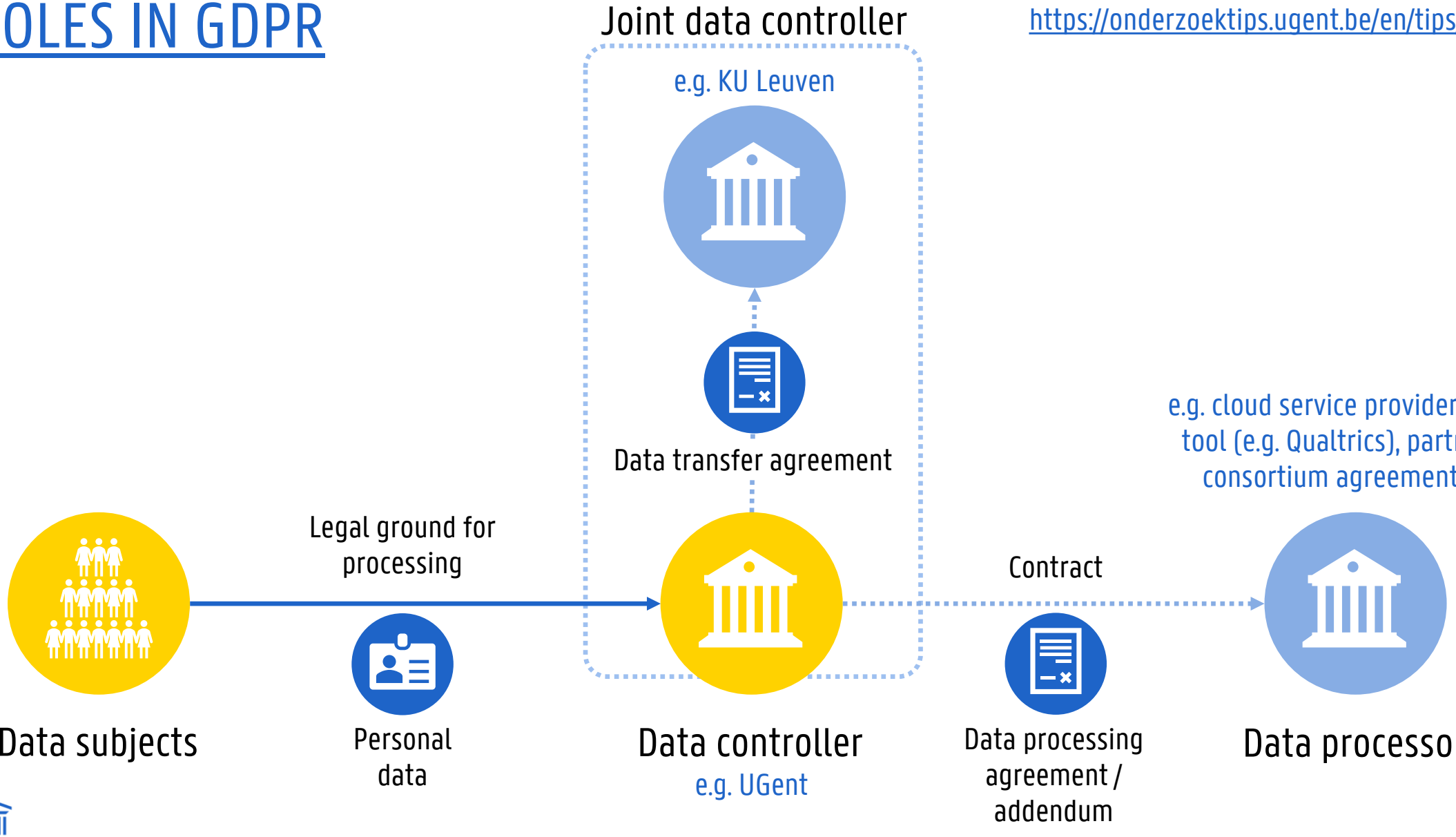
GHENT UNIVERSITY

ROLES, RIGHTS, LEGAL GROUNDS

GHENT UNIVERSITY

ROLES IN GDPR

https://onderzoektips.ugent.be/en/tips/00001789/



GHENT UNIVERSITY

RIGHTS OF DATA SUBJECTS

Data subjects may have the right:

- to be **informed** about which, how, why and when their personal data is processed
- of **access** to their personal data
- of **rectification** of their personal data
- to **erasure** (the 'right to be forgotten')
- to demand a **restriction** processing of their personal data
- to data **portability** of their personal data
- to **object** to (a part of) the processing
- not to be subjected to **automatic decision making / profiling**

=> there are exceptions, but.....

=> Motivation essential!

GHENT UNIVERSITY

https://onderzoektips.ugent.be/en/tips/00001790/

Data subject rights	Legal basis: Consent	Contract	Legal obligation[2]	Vital interests	Public interest[2]	Legitimate interest
Information	✓	✓	✓	✓	✓	✓
Access	✓	✓	✓	✓	✓	✓
Rectification	✓	✓	✓	✓	✓	✓
Erasure	✓	✓	✗ Not applicable[1]	✓	✗ Not applicable	✓
Restriction of processing	✓	✓	✓	✓	✓	✓
Portability	✓	✓	✗ Not applicable	✗ Not applicable	✗ Not applicable	✗ Not applicable
Object	✗ Not applicable: You should withdraw consent	✗ Not applicable	✗ Not applicable	✗ Not applicable	✓	✓ At all times for Direct Marketing
No fully automated decision incl. profiling	Right to a human intervention	Right to a human intervention	Right to a human intervention	✓	✓	✓

DATA PROTECTION GUIDE
FOR SMALL BUSINESS

[1]Erasure can be requested if the personal data has to be erased for compliance with a legal obligation
[2]The basis for processing must be laid down by Union or Member State law

LEGAL GROUNDS

Legitimate, lawful data means defining a legal ground as a condition

One legal ground per processing/purpose
Must be valid before the processing personal data

6 LIMITED possible legal grounds for processing personal data (primary AND secondary use of data)

1. **Consent of the data subject(s)**
2. **Necessary for a task in the public interest**
3. **Legitimate interests pursued by the data controller (researcher on behalf on / and / or host institution-or a third party**
4. Performance of a contract (or pre contract) to which the data subject is party
5. Legal obligation(s) for the controller
6. Protect the vital interests of the data subject or another natural person

https://onderzoektips.ugent.be/en/tips/00001787/

GHENT UNIVERSITY

CONSENT AS LEGAL GROUND

Participation should be:

- Voluntary, free, and informed consent
- Inform the participants:
  - What is the intention of the research?
  - What will you do with the data?
  - ….
  - In a way such as they understand
- Consent should be given explicitly
  - Signing informed consent sheet
  - Checkbox



Other legal grounds?

- Public interest? -> clinical studies, because consent is not free
- Legitimate interest?
- …. https://onderzoektips.ugent.be/en/tips/00002009/

GHENT UNIVERSITY

RISK ASSESSMENT

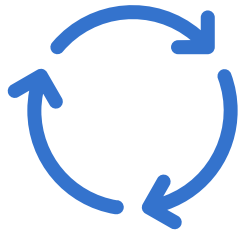
GHENT UNIVERSITY

CONFIDENTIAL DATA

Data for which the unwanted disclosure will have negative or harmful consequences*

(may be unlawful, put participants at risk, put business processes at risk)…

RISKS & IMPACT



SECURITY / MITIGATION MEASURES

GHENT UNIVERSITY

RISK ASSESSMENT

Probability of unwanted disclosure

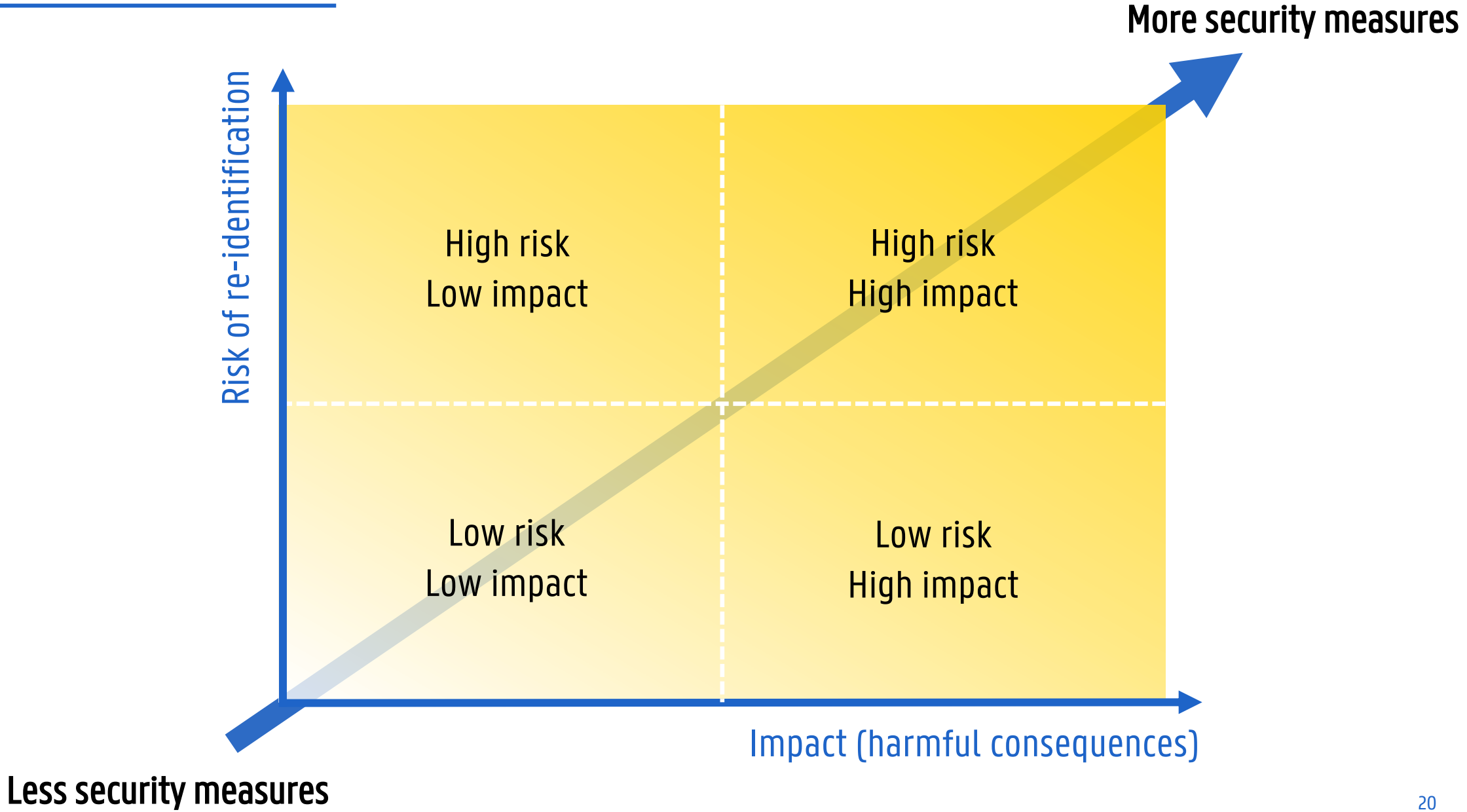
- Data leaks
- Data on a shared platform
- Lost laptop
- Hacking

Impact of unwanted disclosure

- The more sensitive the data, the higher the potential of harmful consequences

GHENT UNIVERSITY

RISK ASSESSMENT



EXAMPLES OF HIGH-RISK SCENARIOS

- You process **special categories** of personal data.
- You process data about **vulnerable groups**
- You collect a lot of personal data, or from a large group
- You publicly monitor people on a **large scale**
- You systematically use automated decision making in your project
- You use new techniques or methods for which the effects on data subjects or others are not yet known
- There is a high change of incidental findings

GHENT UNIVERSITY

TECHNICAL AND ORGANISATIONAL MEASURES (TOM)

GHENT UNIVERSITY

PREVENTING DISCLOSURE

GHENT UNIVERSITY

THE DO'S AND DON'TS OF DATA SECURITY

Avoid local storage or own IT resources

Do not use non-institutional cloud services

Do not send data by email

Data files

Use institutional shared network or cloud storage

Backup regularly

Configure access permissions

Encrypt confidential data

Use safe file transfer alternatives

Computer system & account

Protect your hardware

Keep your system updated

Use strong passwords

Physical data

Control physical access to confidential data

When needed, destroy information in a safe way

- Shred paper
- Erasing software
- Destroy hardware

More info:

- Data security
- Working safely with IT at the UGent
- Knowledge clip: Data security

STORAGE PLATFORMS

Network storage

- Data on UGent-servers



Cloud storage

- ….in the cloud…

SharePoint

OneDrive for Business

Institutional-supported cloud services

Dropbox

Non-institutional (third-party) cloud services

Local storage

- Laptop
- Desktop
- USB drive
- External HD



GHENT UNIVERSITY

https://www.ugent.be/en/research/openscience/datamanagement/during-research/storage.htm

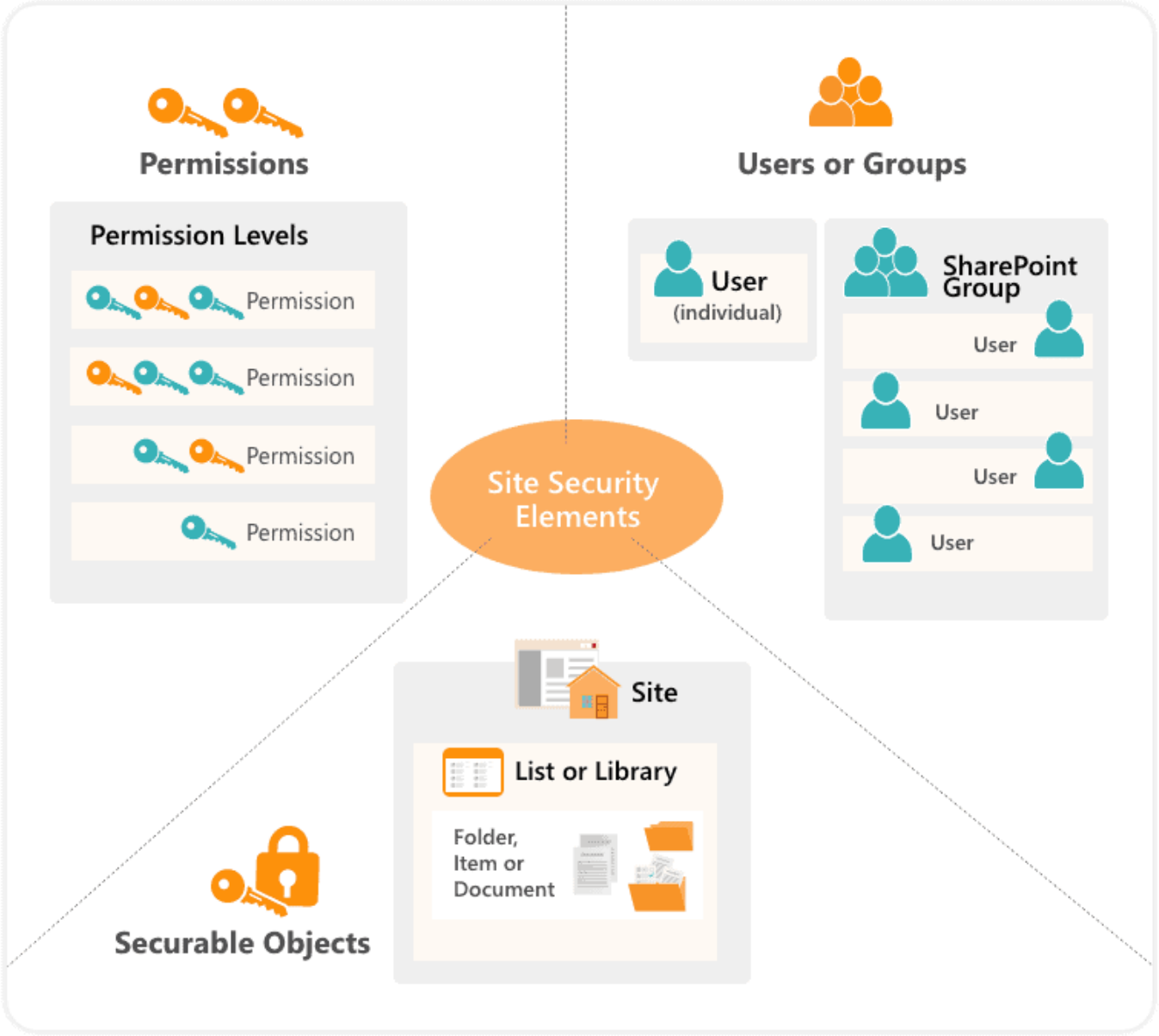
POSSIBLE SECURITY MEASURES ON UGENT-SUPPORTED PLATFORMS

Sensitiveness of data & security measures

Main storage location	Back-up	Access control	Encryption
Shares (network drives)	Auto	Configurable (ACL lists)	As extra security layer
SharePoint site (cloud)	Auto Sync to local	Configurable (permission levels)	Encrypt synced local copies
Local storage (avoid if possible)	Manual Sync to safe location (shares)	Not supported	Encrypt local copies

ACCESS CONTROL

- Limit access to people that really need access and in accordance with the consent form.
- Use access and permission control of storage platform
  - ACL shares/network drives
  - User groups in SharePoint



GHENT UNIVERSITY

ENCRYPTION – WHEN?

Local storage of raw data



Raw data

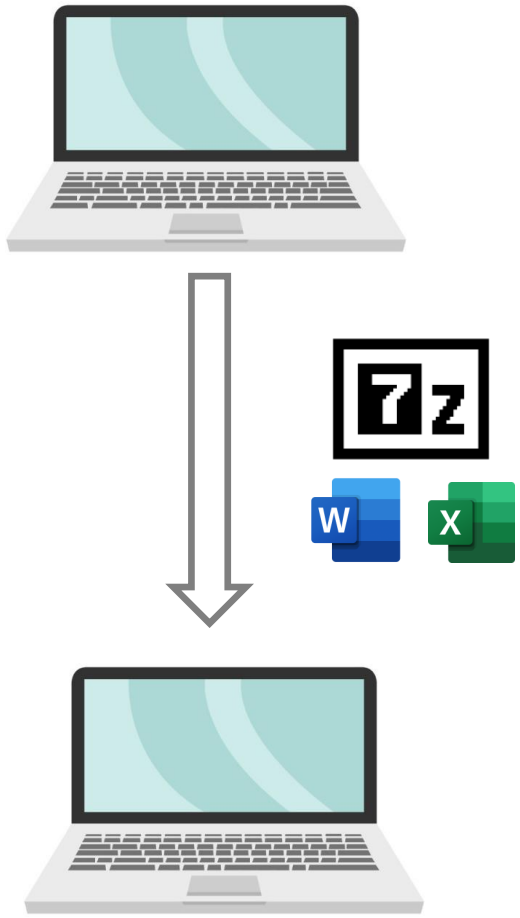
Local storage of pseudonymised data and key files



Pseudonymised data

Keyfile

File transfer of personal data



ENCRYPTION - WHAT IS IT?



INT_20211119_Part01

This file is the transcript of an interview with Participant 01, taken on November 19, 2021

INT_20211119_Part01

Ku5297fh66à}sqfjh96+
98eoijo8(°édfj@{dsfmlh64/
\ùoij+91+hgO[2é1lihlkh

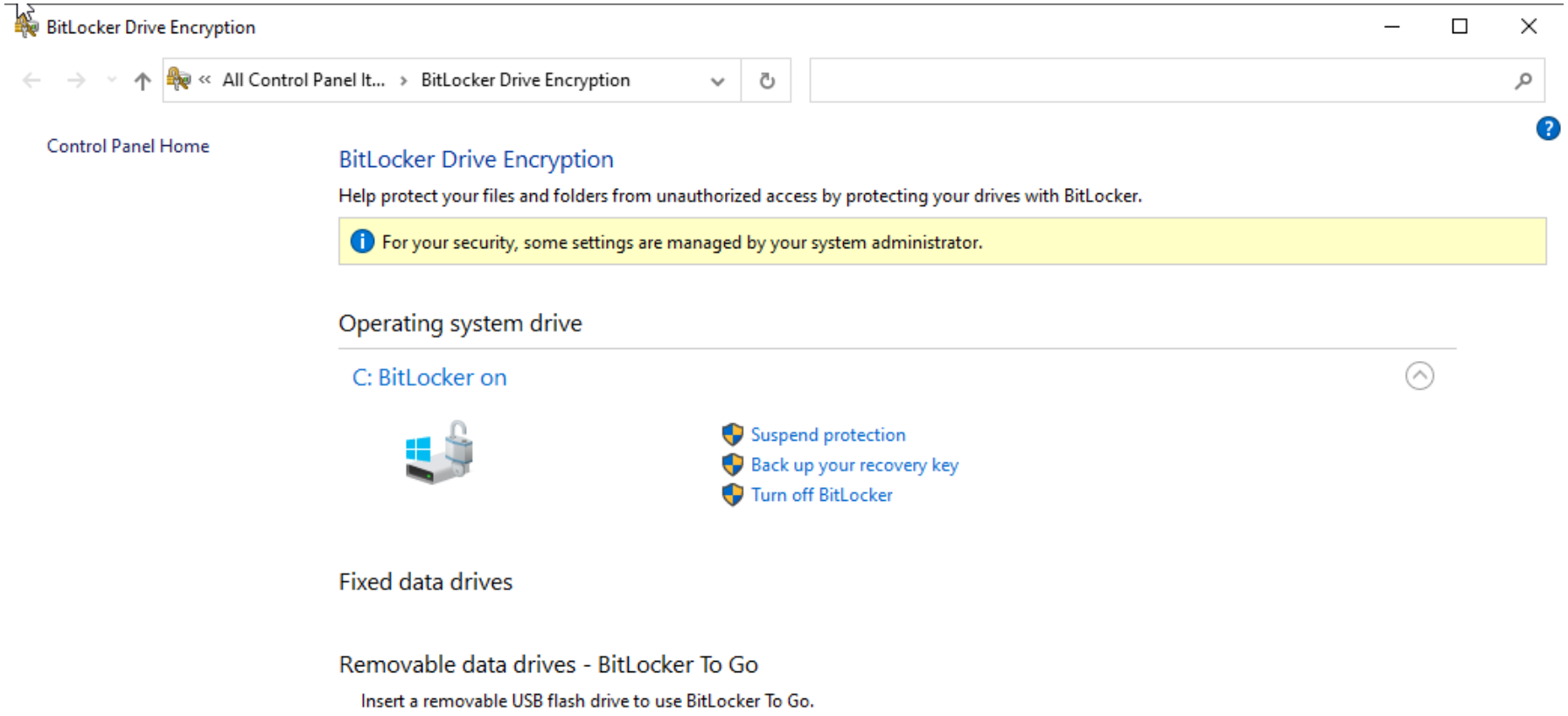
INT_20211119_Part01

This file is the transcript of an interview with Participant 01, taken on November 19, 2021

GHENT UNIVERSITY

Encryption manual

ENCRYPTION – BUILT IN (AUTOMATICALLY ACTIVATED) FOR INTUNE DEVICES

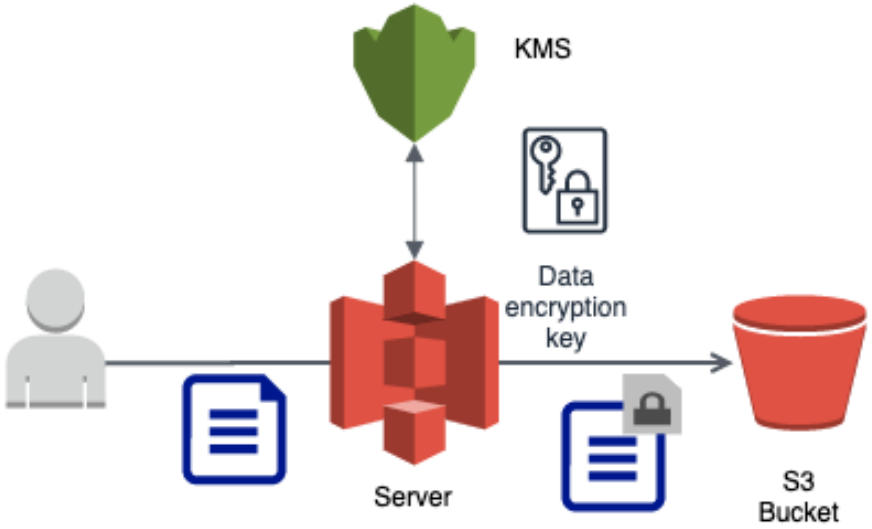


GHENT UNIVERSITY

CLIENT VS SERVER-SIDE ENCRYPTION



Depending on researcher's effort



Depending on security measures implemented by server provider.

Has the server provider been assessed?

GHENT UNIVERSITY

POTENTIAL OTHER LOCATIONS OF DATA?

- Recommended data collection platforms for surveys: Qualtrics or MS Forms
- Recording or monitoring devices and apps: e.g. interview recordings

- Avoid collecting unwanted personal data (IP addresses, geo tags)
- Where are the data stored and how are they transferred?

qualtrics XM





Transfer of raw data

Transfer of raw data

Secure storage

Using a protocol or manual

GHENT UNIVERSITY

IMPACT REDUCTION

GHENT UNIVERSITY

DATA MINIMISATION

- One of the GDPR principles

- **Limit the processing of personal** data as much as possible:
  - Only data needed to reach your research purpose.
  - From the minimum number of individuals needed.
  - Avoid automatic collection of unnecessary personal data
    - E.g. “Anonymize responses” option in Qualtrics
  - Use directly identifying information only if you legitimately need them
    - E.g. keep in touch with data subjects or to answer your research question
  - Removing personal data when you no longer need them.
  - Pseudonymising or anonymising personal data as early as possible.

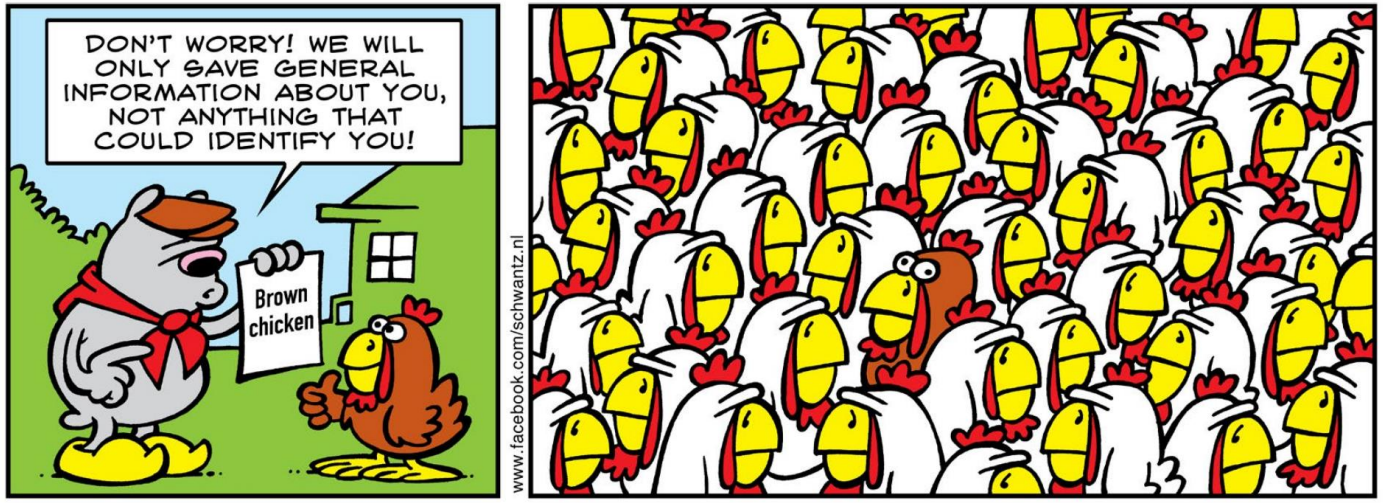
GHENT UNIVERSITY

FACTORS

Anonymous data collection? => Usually not possible

How hard is it to re-identify participants?

- Number of attributes/indirect identifiers
- Target population (size and diversity of data)
- Granularity/precision of the data
- Contextual and auxiliary data available (from other sources)



GHENT UNIVERSITY

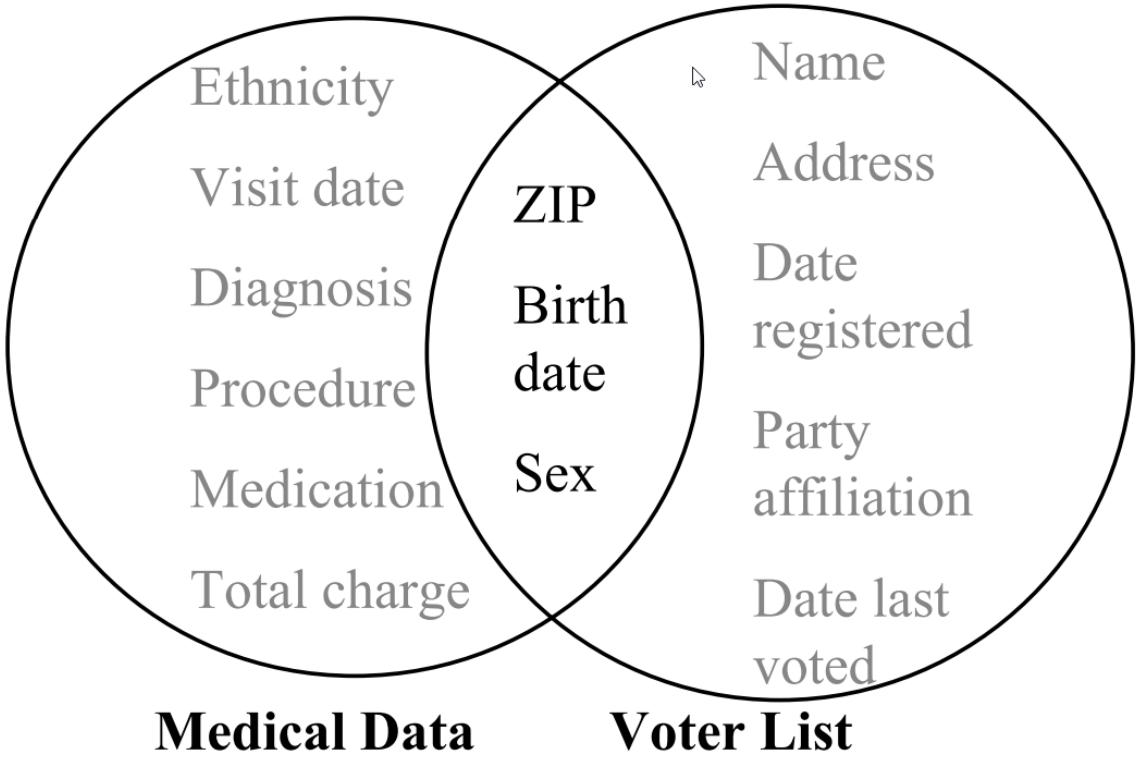
NUMBER OF IDENTIFIERS & OTHER DATA

The more types of personal is gathered, the higher the risk becomes to re-identify or single out individuals.

For example, 87% of the U.S. population can be singled out by using a combination of

- ZIP-code
- Gender
- Date of birth

Database linking is a real risk!



GHENT UNIVERSITY

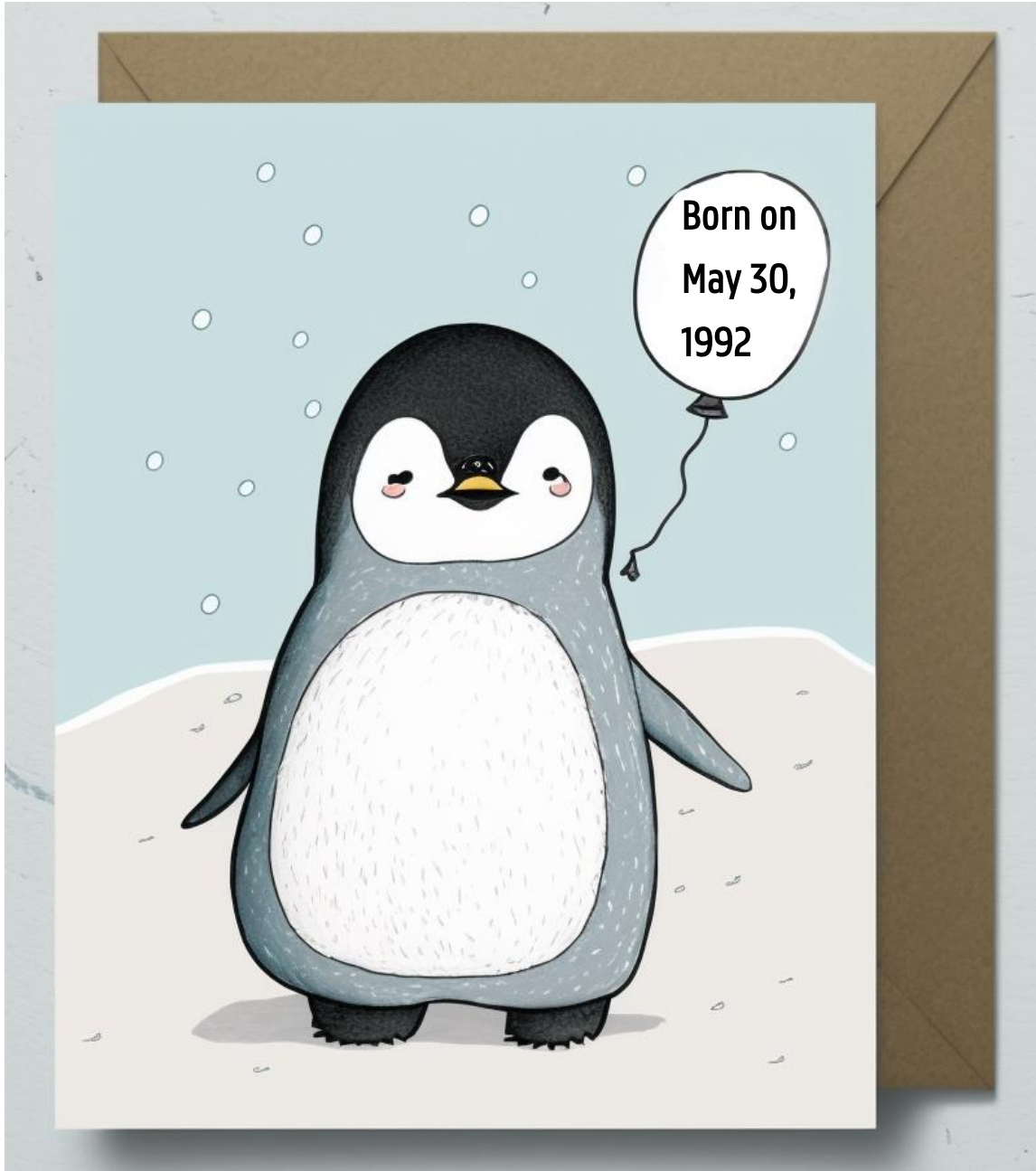
*L. Sweeney, Simple Demographics Often Identify People Uniquely. Carnegie Mellon University, Data Privacy Working Paper 3. Pittsburgh 2000.

PRECISION OF THE DATA

You're doing an online survey (BE):

A participant is born on May 30, 1992

- You enquire day of birth: 1 out of 220
- You enquire year of birth: 1 out of 125.322
- You enquire age group in steps of 10 years (+1.000.000)

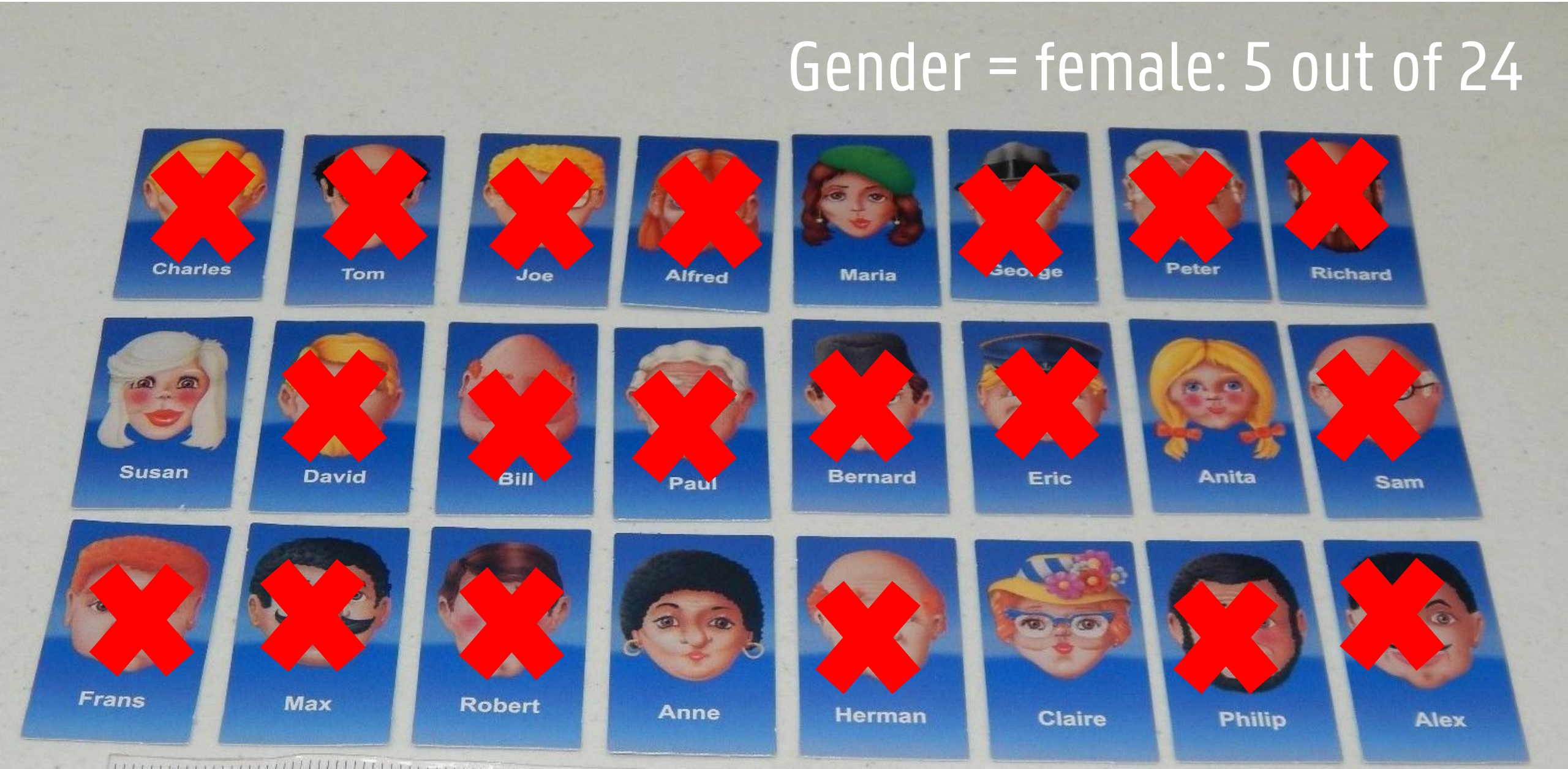


GHENT UNIVERSITY

TARGET POPULATION



TARGET POPULATION



TARGET GROUP



TARGET POPULATION



TARGET POPULATION

Gender = female: 12 out of 24



TARGET POPULATION

Wearing glasses: 3 out of 12



PSEUDONYMISATION AS A TOOL TO REDUCE IMPACT

GHENT UNIVERSITY

PSEUDONYMISATION

Raw Data file

Name	Date of birth (dd-mm-yyyy)	Gender	Level of education	Place of Living	Test Score (0 - 20)	Test 2 score (0 - 20)	Test 3 score (0 - 20)	....
Marty McFly	12/08/1966	M	Secundary	Hill Valley	18	15	11	
Elwood Blues	05/12/1952	M	Secundary	Chicago	19	11	09	
Elsa Schneider	23/03/1914	V	Master	Berlin	10	14	18	
Walter Sobchak	01/02/1946	M	Bachelor	Los Angeles	15	8	14	
Chris Shiherlis	19/11/1958	M	Bachelor	Los Angeles	13	19	12	
.....								

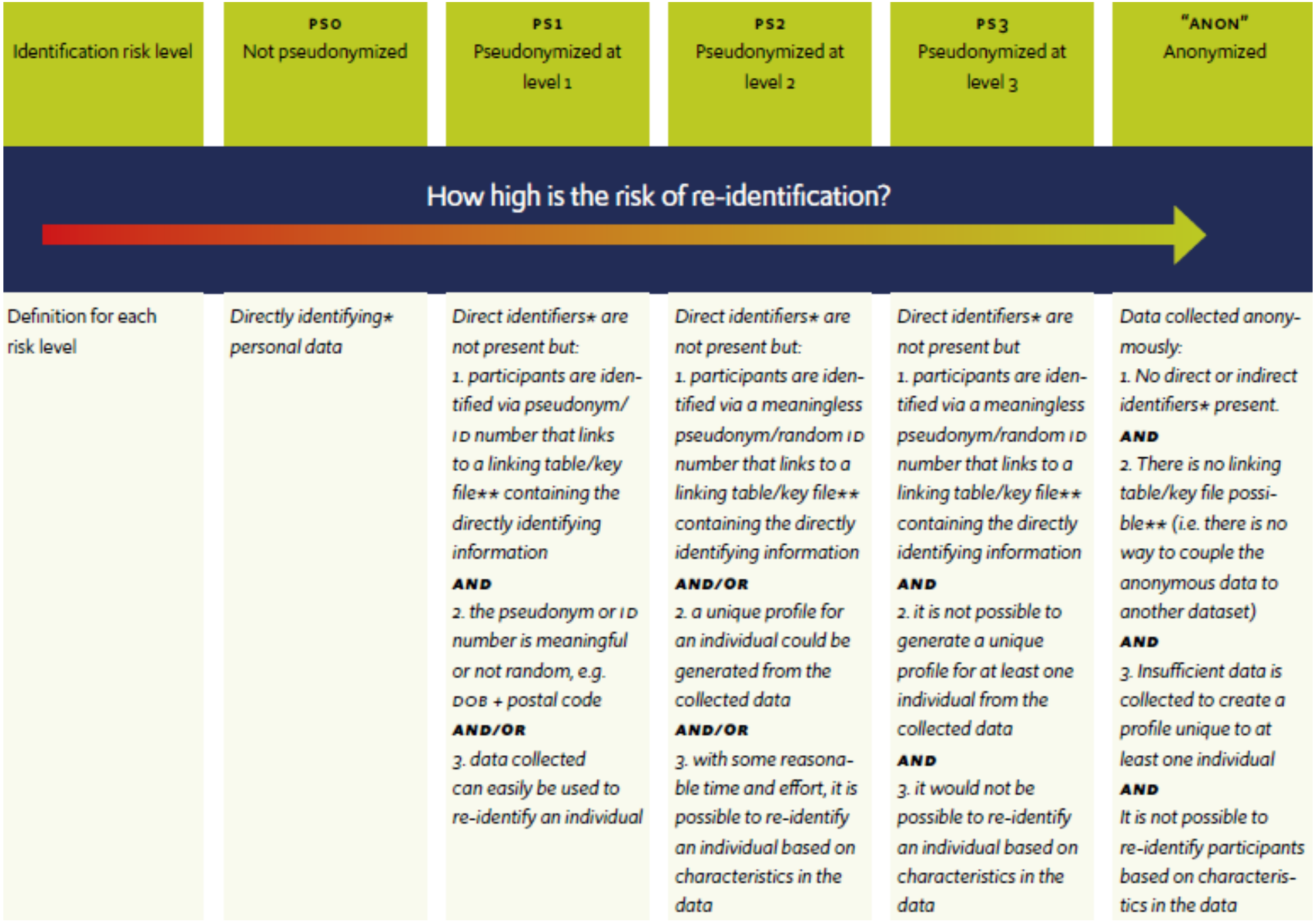
Name	year of birth	Gender	Level of education	Place of Living	Test Score (0 - 20)	Test 2 score (0 - 20)	Test 3 score (0 - 20)	....
P085	1966	M	Secundary	California	18	15	11	
P080	1952	M	Secundary	Illinois	19	11	09	
P089	1914	V	University	Europe	10	14	18	
P098	1946	M	University	California	15	8	14	
P095	1958	M	University	California	13	19	12	
.....								

Keyfile:

Pseudonym	Name
P085	Marty McFly
P080	Elwood Blues
P089	Elsa Schneider
P098	Walter Sobchak
P095	Chris Shiherlis
.....	

GHENT UNIVERSITY

LEVELS OF PSEUDONYMISATION

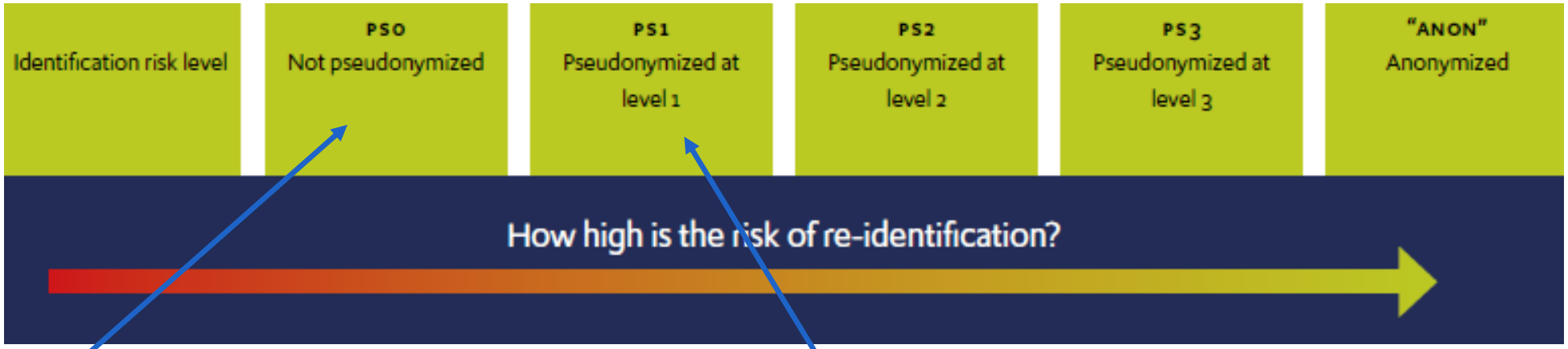


Identification risk level	PS0 Not pseudonymized	PS1 Pseudonymized at level 1	PS2 Pseudonymized at level 2	PS3 Pseudonymized at level 3	"ANON" Anonymized
Definition for each risk level	*Directly identifying* personal data*	*Direct identifiers* are not present but:* *1. participants are identified via pseudonym/ ID number that links to a linking table/key file** containing the directly identifying information* **AND** *2. the pseudonym or ID number is meaningful or not random, e.g. DOB + postal code* **AND/OR** *3. data collected can easily be used to re-identify an individual*	*Direct identifiers* are not present but:* *1. participants are identified via a meaningless pseudonym/random ID number that links to a linking table/key file** containing the directly identifying information* **AND/OR** *2. a unique profile for an individual could be generated from the collected data* **AND/OR** *3. with some reasonable time and effort, it is possible to re-identify an individual based on characteristics in the data*	*Direct identifiers* are not present but* *1. participants are identified via a meaningless pseudonym/random ID number that links to a linking table/key file** containing the directly identifying information* **AND** *2. it is not possible to generate a unique profile for at least one individual from the collected data* **AND** *3. it would not be possible to re-identify an individual based on characteristics in the data*	*Data collected anonymously:* *1. No direct or indirect identifiers* present.* **AND** *2. There is no linking table/key file possible** (i.e. there is no way to couple the anonymous data to another dataset)* **AND** *3. Insufficient data is collected to create a profile unique to at least one individual* **AND** *It is not possible to re-identify participants based on characteristics in the data*

GHENT UNIVERSITY

LCRDM - Hrudey, E. J., et al. 2019, Zenodo, doi:10.5281/zenodo.3584333.

LEVELS OF PSEUDONYMISATION

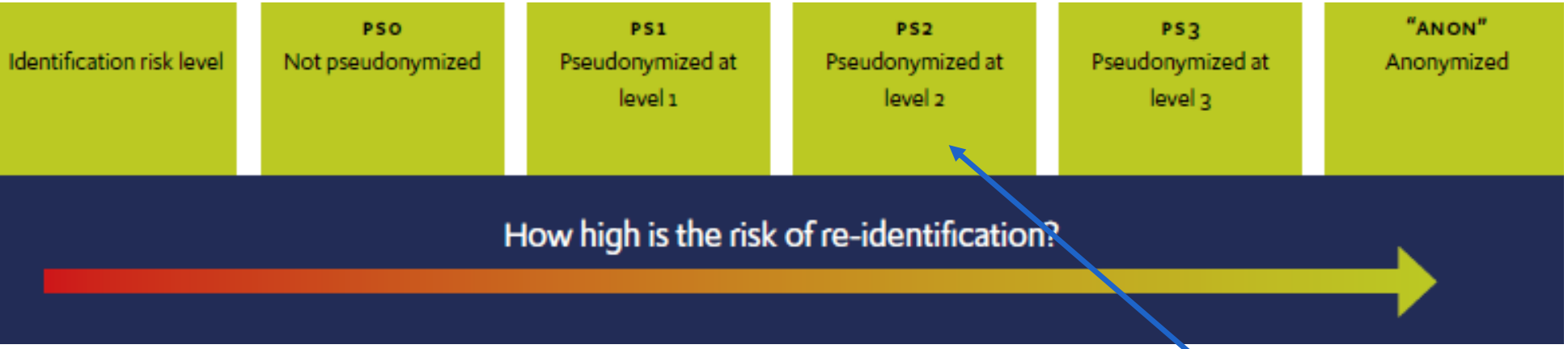


Name	Gender	Birth year	Education level	Religion
Eleanor Rigby	Female	2000	Secondary	Flying Spaghetti Monster
Bennie Jets	Male	2003	PhD	Flying Spaghetti Monster
Billie Jean	Female	2000	Secondary	Agnostic
Caroline Sweet	Female	1960	Master	Flying Spaghetti Monster
Mary Jane	Female	1967	Secondary	Buddhist
Joe Hendrix	Male	1992	Master	Christian
Roxanne Police	Female	1951	Secondary	Agnostic

ID	Gender	Education level	Religion
ER200	Female	Secondary	Flying Spaghetti Monster
BJ2003	Male	PhD	Flying Spaghetti Monster
BJ2000	Female	Secondary	Agnostic
CS1960	Female	Master	Flying Spaghetti Monster
MJ1967	Female	Secondary	Buddhist
JH1992	Male	Master	Christian
RP1951	Female	Secondary	Agnostic

Keyfile	
ID	Name
ER200	Eleanor Rigby
BJ2003	Bennie Jets
BJ2000	Billie Jean
CS1960	Caroline Sweet
MJ1967	Mary Jane
JH1992	Joe Hendrix
RP1951	Roxanne Police

LEVELS OF PSEUDONYMISATION

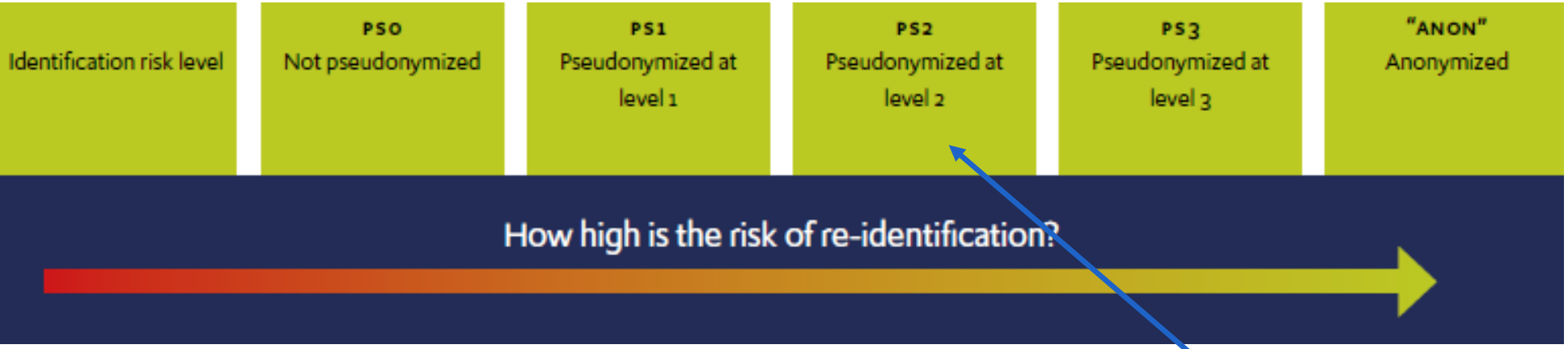


Keyfile	
ID	Name
P02	Eleanor Rigby
P53	Bennie Jets
P12	Billie Jean
P09	Caroline Sweet
P79	Mary Jane
P93	Joe Hendrix
P35	Roxanne Police

Name	Gender	Birth year	Education level	Religion
P02	Female	2000	Secondary	Flying Spaghetti Monster
P53	Male	2003	PhD	Flying Spaghetti Monster
P12	Female	2000	Secondary	Agnostic
P09	Female	1960	Master	Flying Spaghetti Monster
P79	Female	1967	Secondary	Buddhist
P93	Male	1992	Master	Christian
P35	Female	1951	Secondary	Agnostic

GHENT UNIVERSITY

LEVELS OF PSEUDONYMISATION



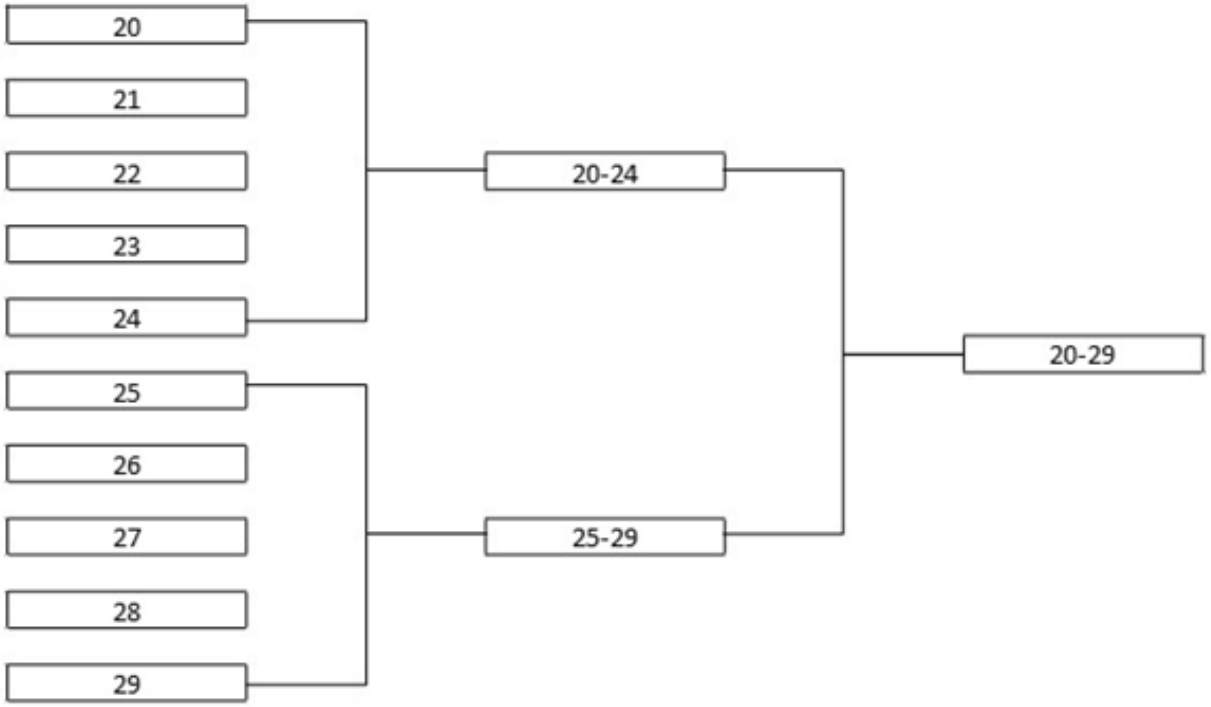
Keyfile	
ID	Name
ER200	Eleanor Rigby
BJ2003	Bennie Jets
BJ2000	Billie Jean
CS1960	Caroline Sweet
MJ1967	Mary Jane
JH1992	Joe Hendrix
RP1951	Roxanne Police

Name	Gender	Birth year	Education level	Religion
P02	Female	2000	Secondary	Flying Spaghetti Monster
P53	Male	2003	PhD	Flying Spaghetti Monster
P12	Female	2000	Secondary	Agnostic
P09	Female	1960	Master	Flying Spaghetti Monster
P79	Female	1967	Secondary	Buddhist
P93	Male	1992	Master	Christian
P35	Female	1951	Secondary	Agnostic

GHENT UNIVERSITY

TECHNIQUES

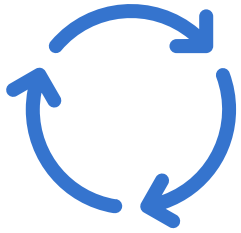
Taxonomy tree - age



Masking information

	Table 1: Raw patient data			
ID	Name	Age	ZIP Code	Health issues
1	Sara	24	9000	Astigmatism
2	Jan	22	9000	Astigmatism
3	Steven	27	9000	Astigmatism
4	Tom	31	141*	HIV
5	Silke	32	141*	Glaucoma
6	Bert	33	141*	HIV
7	Anne	49	23**	Morbid obesity
8	Daniel	43	23**	Morbid obesity

Level of detail



Level of information

GHENT UNIVERSITY

TECHNIQUES

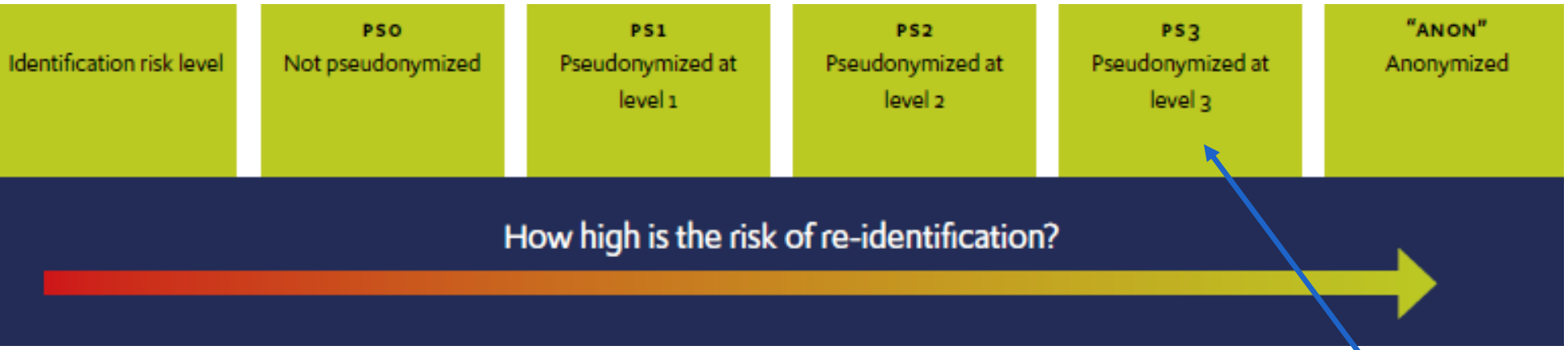


	Table 1: Raw patient data			
ID	Name	Age	ZIP Code	Health issues
1	Sara	24	9000	Astigmatism
2	Jan	22	9000	Astigmatism
3	Steven	27	9000	Astigmatism
4	Tom	31	1410	HIV
5	Silke	32	1410	Glaucoma
6	Bert	33	1410	HIV
7	Anne	49	2320	Morbid obesity
8	Daniel	43	2320	Morbid obesity

	Table 2: pseudonymised data		
ID	Age	ZIP Code	Health issues
1	20-29	90xx	Astigmatism
2	20-29	90xx	Astigmatism
3	20-29	90xx	Astigmatism
4	30-39	14xx	HIV
5	30-39	14xx	Glaucoma
6	30-39	14xx	HIV
7	40-49	23xx	Morbid obesity
8	40-49	23xx	Morbid obesity

	Keyfile
ID	Name
1	Sara
2	Jan
3	Steven
4	Tom
5	Silke
6	Bert
7	Anne
8	Daniel

TECHNIQUES

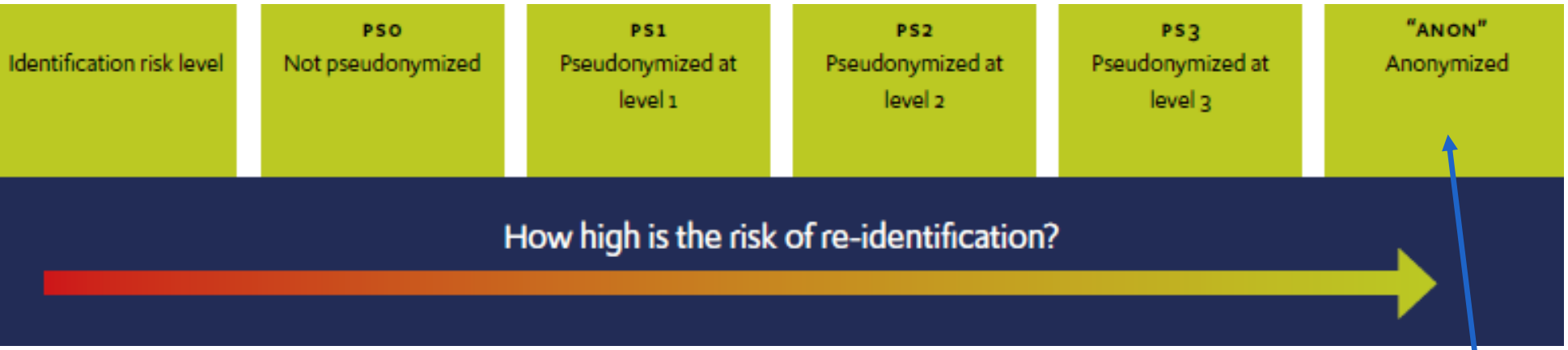


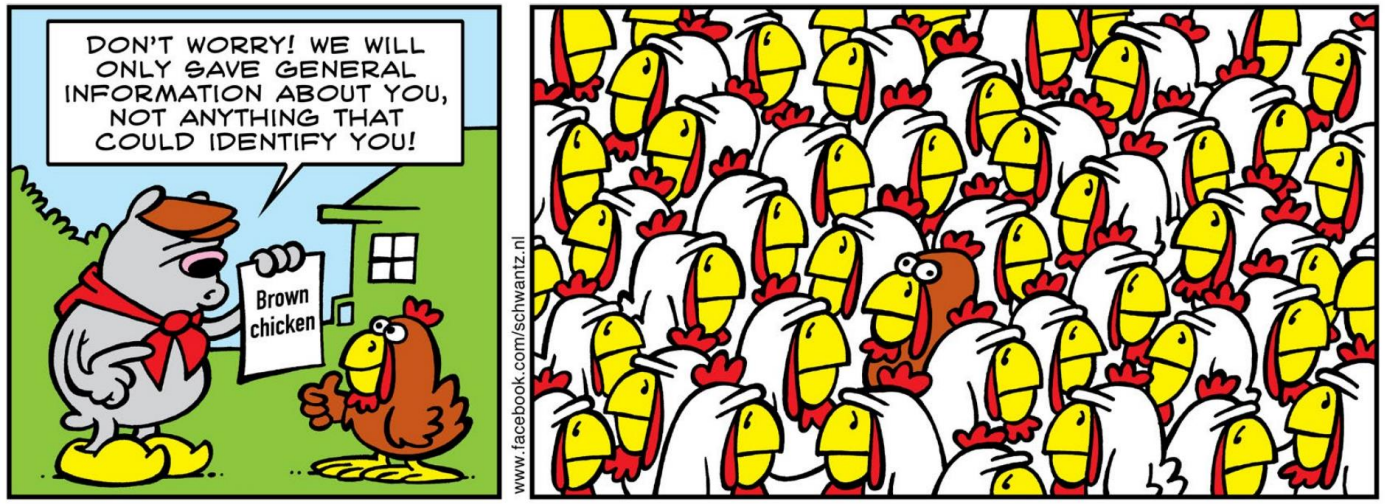
	Table 1: Raw patient data			
ID	Name	Age	ZIP Code	Health issues
1	Sara	24	9000	Astigmatism
2	Jan	22	9000	Astigmatism
3	Steven	27	9000	Astigmatism
4	Tom	31	1410	HIV
5	Silke	32	1410	Glaucoma
6	Bert	33	1410	HIV
7	Anne	49	2320	Morbid obesity
8	Daniel	43	2320	Morbid obesity

	Table 2: pseudonymised data		
ID	Age	ZIP Code	Health issues
1	20-29	90xx	Astigmatism
2	20-29	90xx	Astigmatism
3	20-29	90xx	Astigmatism
4	30-39	14xx	HIV
5	30-39	14xx	Glaucoma
6	30-39	14xx	HIV
7	40-49	23xx	Morbid obesity
8	40-49	23xx	Morbid obesity

	Keyfile
8	Daniel

SUMMARY TECHNICAL AND ORGANISATIONAL MEASURES

- Preventing disclosure
  - Secure storage
  - Access control
  - Encryption
- Reducing impact – avoid reidentification
  - Data minimisation
    - Level of detail
    - Sample size
  - Pseudonymisation
  - Anonymisation



GHENT UNIVERSITY

EXERCISE

- Identify the level of pseudonymisation

WHAT ABOUT SHARING/REUSING PERSONAL DATA?

GHENT UNIVERSITY

PRIMARY VS. SECONDARY PROCESSING OF DATA

- Primary processing: when you collect the personal data directly from the data subjects as part of your research with a specific objective in mind.
- **Secondary processing**: when personal data was collected for another research project (to answer another research question), or by a third party.
  - GDPR allows secondary use or "further processing" of data for research purposes. As long as:
    - **Technical and organizational measures** are in place to **ensure the privacy** of the data subjects is adequately protected.
    - GDPR still applies:
      - A legal ground is still necessary.
      - The purpose of the processing should be compatible with the original purposes as laid by the informed consent in the primary data collection.
      - It is still important to be transparent towards the data subjects about the further processing of personal data.

GHENT UNIVERSITY

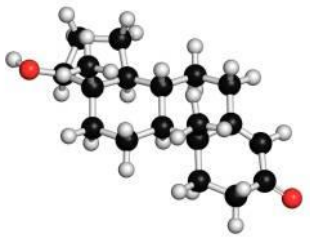
https://onderzoektips.ugent.be/en/tips/00001788/

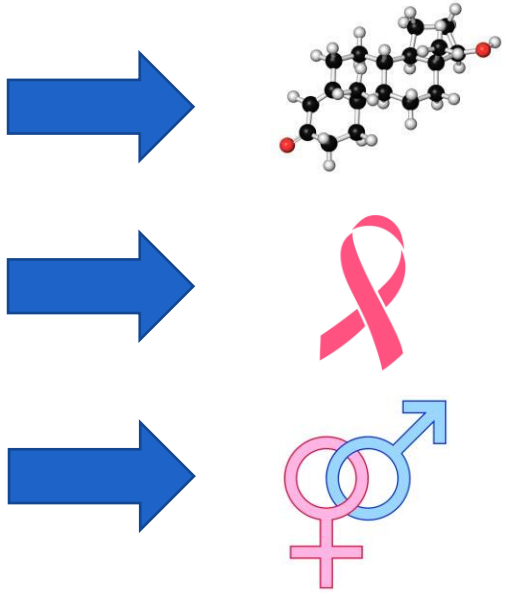
https://onderzoektips.ugent.be/en/tips/00001887/

SECONDARY PROCESSING WHEN CONSENT WAS LEGAL BASIS

- Was consent given for re-use? And in what context?
- Presumption of compatibility vs. expectations of the data subjects
  - What's the original purpose? Is the new purpose within the expectations of the data subjects? Legal vs. ethical

Personal Data collected for Hormone Research





Reused for Hormone Research — GDPR

Reused for Cancer Research — GDPR

Reused for Gender Studies — GDPR

GHENT UNIVERSITY

SECONDARY PROCESSING – OTHER LEGAL GROUNDS & TOM

- For example:
  - data received from police departments
  - Language studies on video fragments
  - GPS data from cars to study traffic
  - …..

Appropriate TOM!

Usually:

  - pseudonymised data
  - Purpose limitation/contract

GHENT UNIVERSITY

INCLUDING DATA SHARING IN CONSENT FORMS

If you want to share data, it should be in the consent form!

- **Provide information on the intent to share the data and the conditions for sharing**
  Whether the data will be fully open or under restricted access.

- **Be transparent and specific about which personal data you plan to share**
  What you will not share and what you plan to share

- **State the privacy measures you will apply to the data to reduce the risks of re-identification**
  How will you ensure their privacy is safeguarded.
  Avoid terms such as fully anonymous.

GHENT UNIVERSITY

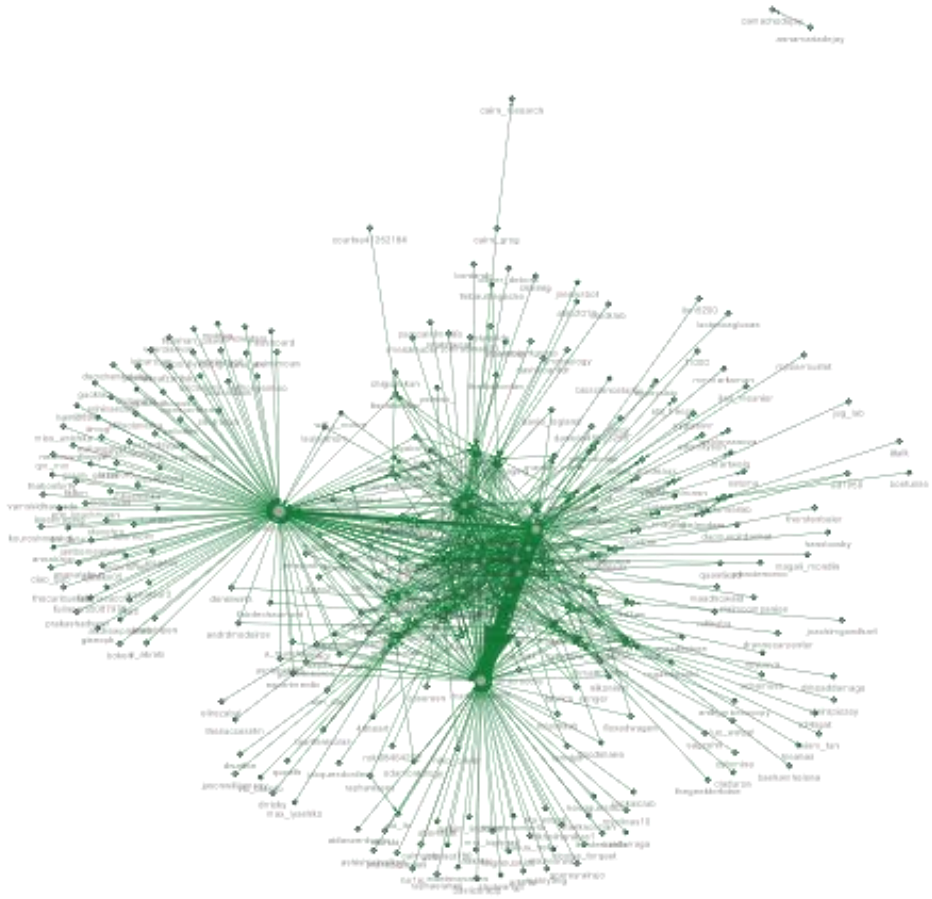
SHARING DATA

Think about:

- Contractual obligations
- Sensitivity of the dataset/risk assessment
- Legal framework
- When in doubt: contact support!

Example twitter data:

- No consent to share
- With appropriate TOM => might be possible



GHENT UNIVERSITY

DATA REPOSITORIES FOR SENSITIVE DATA

First make sure approvals are in place: ethical and legal (if necessary)

Use a repository that

- enables findability
- protects from unauthorized access
- has compatible terms and conditions

e.g. The European Genome-phenome Archive (EGA) is a service for permanent archiving and sharing of personally identifiable genetic, phenotypic, and clinical data generated for the purposes of biomedical research projects

EUROPEAN GENOME-PHENOME ARCHIVE

Central metadata accessibility

Secure storage

Implemented data access committees

or DANS-EASY or UK Data Archive, …

GHENT UNIVERSITY

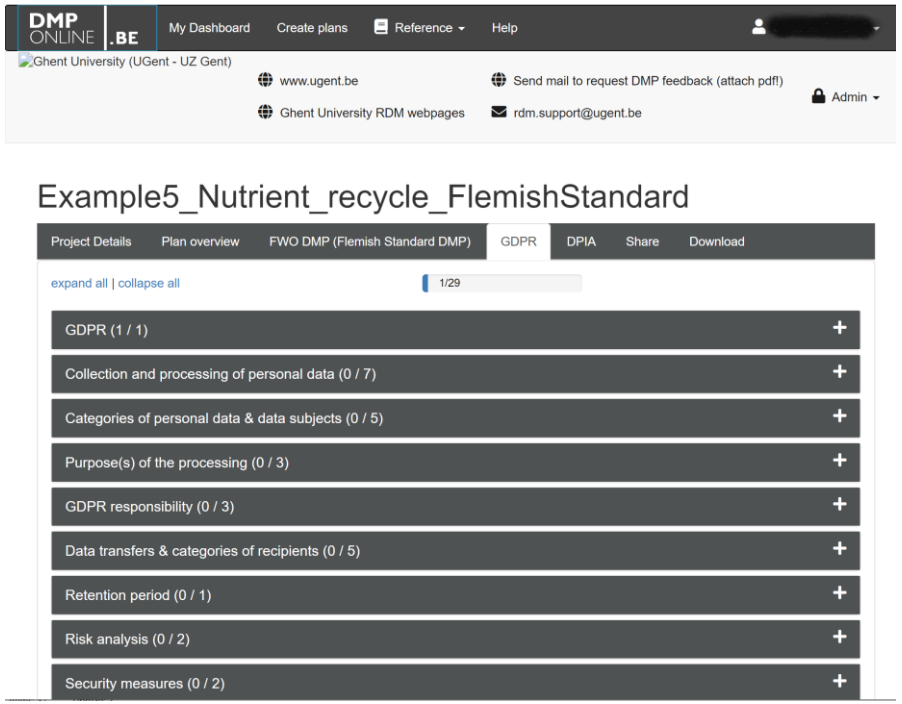
ACTIONS TO TAKE

GHENT UNIVERSITY

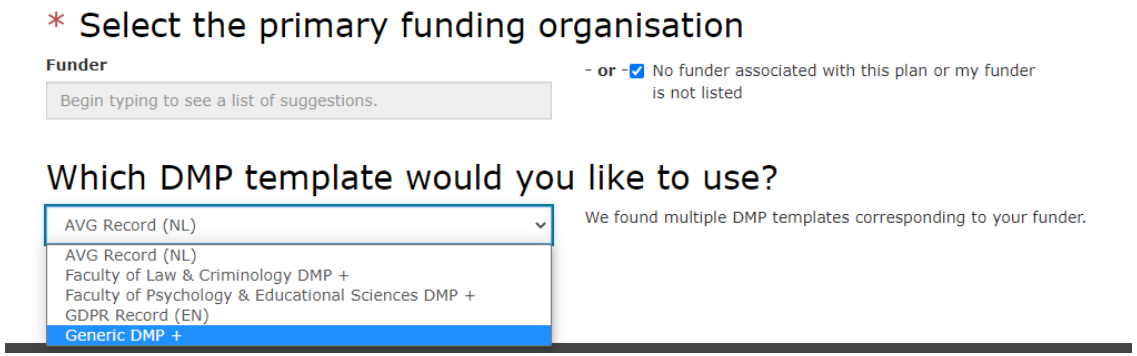
GDPR REGISTRATION – A LEGAL OBLIGATION

Register personal data processing activities

- GDPR (General Data Protection Regulation) requires that all personal data processing activities are documented and registered in a **'register of processing activities'**, (aka GDPR Register).
- GDPR register can be done with DMPonline.be, in a GDPR record tab, but it is not part of the DMP.
- GDPR register has to be done before personal data is processed and updated upon change



DMP ≠ Registration of processing activities



GDPR record only



DMP + GDPR record

https://onderzoektips.ugent.be/en/tips/00001795/

WHEN DO I NEED A DPIA (DATA PROTECTION IMPACT ASSESSMENT)?

- Aim of DPIA: identify privacy risks and assess the **impact** your research will or might have on the **privacy** and **fundamental rights** of the data subjects
- If the data processing constitutes a **probable high risk** based on **risk analysis** during the registration of your personal data processing activities (GDPR tab in DMPonline.be)
  - If two or more risks are identified
  - e.g. special categories of personal data, personal data of children or vulnerable persons, large scale studies, non-pseudonymised personal data (https://onderzoektips.ugent.be/en/tips/00001853/)

GHENT UNIVERSITY

INFORMED CONSENT TEMPLATE

SECTION 1 - INFORMATION LETTER FOR PARTICIPANTS IN RESEARCH

Title of the study: [Enter the (simplified) title of the study here]

This is a study conducted by Ghent University in collaboration with <name external institution/company>. The responsible researchers are:

NAME RESEARCHER	NAME PROMOTOR
NAME RESEARCH GROUP	NAME RESEARCH GROUP
Ghent University	Ghent University
Email: <name>@ugent.be	Email: <name>@ugent.be
Phone no.: <phone number>	Phone no.: <phone number>

A. Information about the study

[Briefly explain who you are. Invite the participants to participate in the research you are doing. Explain to them that they may take their time in deciding whether to participate. Also explain to them that if they do not understand words or concepts, you will explain and they may always ask additional questions].

E.g.

Dear,

You are invited to participate in a study of Ghent University. Please take the time to read this information letter carefully before you decide to participate in this study. Do not hesitate to ask questions to the researcher if there are any ambiguities or if you would like additional information. Make sure you understand everything. Once you have decided to participate in the study you will be asked to sign the consent form on the last page.

What is the purpose of the research?

[Give a brief description of the research and its objectives. When doing so, try to use language that is understandable for the target audience and avoid jargon].

Ethical Approval

[If applicable, state that this study was approved by an ethics committee. Clarify which ethics committee specifically is involved and when the study was approved by the ethics committee]

B. Consent for the processing of personal data

Please check the appropriate box	yes	no
I have read the information form and I know that I have rights to safeguard my privacy (including access, correction, deletion) and to whom I should turn to exercise these rights.	o	o
I give permission to the researchers to collect, process and store (personal) data from me for the purposes of this study.	o	o
[if applicable] I give permission to be included recognizably in publications [be specific] as part of this study.	o	o

C. Consent about the reuse and sharing of data

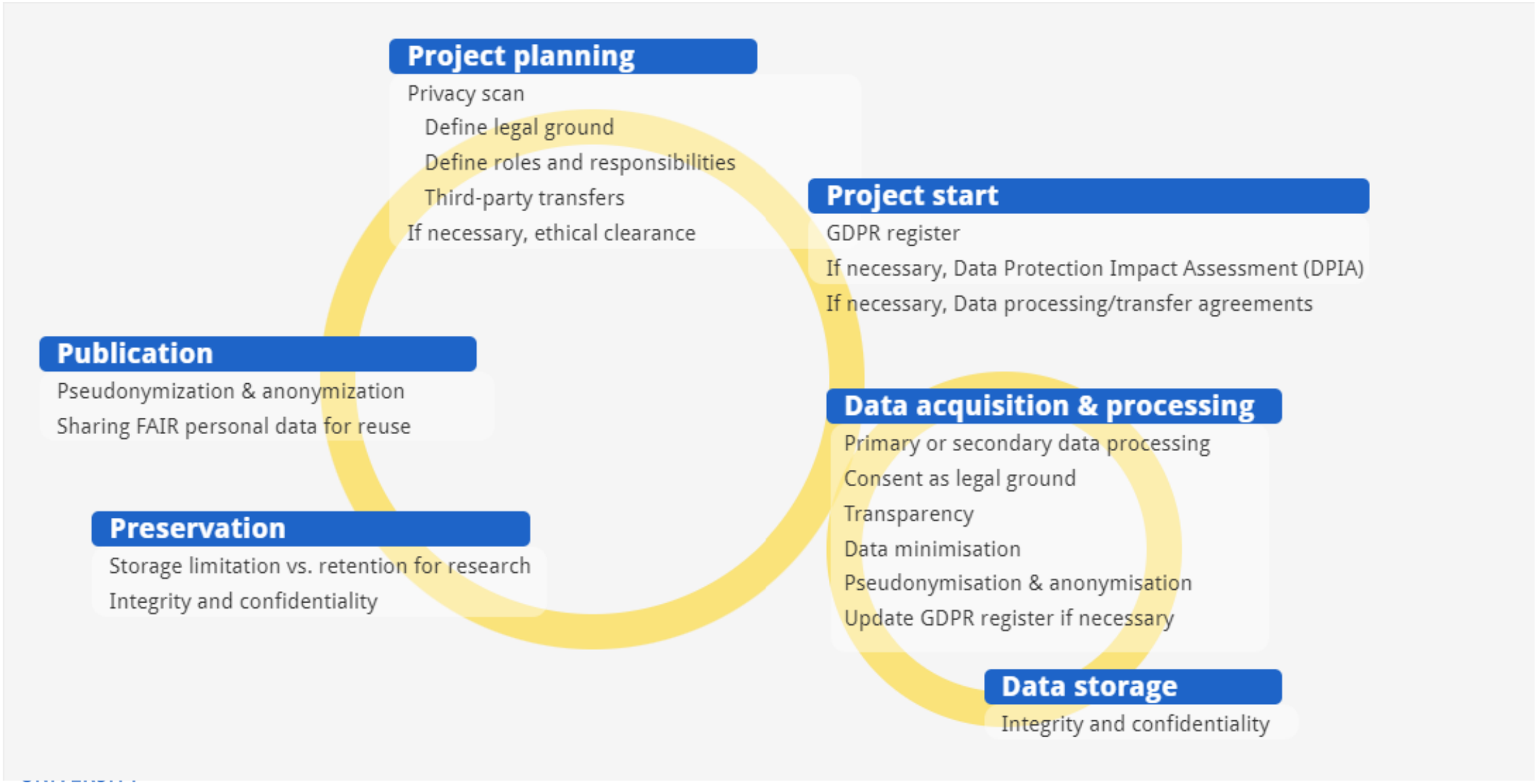
[Note: if you do not include this clause, you cannot share or reuse (pseudonymized) data for other purposes].

Please check the appropriate box	yes	no
I give permission for my data to be reused for further scientific research beyond the scope of the current study.	o	o
I give permission to share my data for further scientific research. In doing so, all necessary measures will be taken to protect the confidentiality of my personal data. [or] I give permission to share my data for further scientific research, and to do so with researchers within and outside the EEA. In doing so, all necessary measures will be taken to protect the confidentiality of my personal data.	o	o

GHENT UNIVERSITY

https://onderzoektips.ugent.be/en/tips/00002009/

ACTIONS DURING RESEARCH PROJECT LIFE CYCLE



CONCLUSIONS

- Personal data collected for **research purposes holds a privileged spot** within the legislation which softens restrictions **so long as proper safeguards and privacy measures are adopted**.
- GDPR forces researchers to **think about the privacy** of the data **prior to collection**.
- Be aware of what you are doing with other people's data!
- Know the potential risks and mitigate beforehand.

- When in doubt – **get support**!

GHENT UNIVERSITY

UGent Data Stewards

GHENT UNIVERSITY LIBRARY / UNIVERSITEITSBIBLIOTHEEK GENT

www.ugent.be


rdm.support@ugent.be / openscience@ugent.be


@UGent_OS


boekentoren.gent/UGent_OS


ugentbe.sharepoint.com/UGent_OS_training


youtube.com/UGent_OS

GHENT
UNIVERSITY